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Case Number: 25SMCV00759 Hearing Date: August 11, 2026 Dept: P

Tentative

Ruling

Melissa

Gerson v. Guideline Builders, Inc., et al., Case No. 25SMCV00759

Sorensen

Architects, Inc.'s Demurrer to the Second Amended Complaint

Hearing

Date: August 11, 2026

This is a

breach of contract and professional negligence case based on Plaintiff Melissa Gerson's allegations that Defendants Guideline Builders, Sorensen Architects, Christopher R. Sorensen, Parker Resnick Structural Engineering, and Steven Cox breached their contracts to correct structural issues in Plaintiffs home, instead causing the house to become structurally unsound. (Third Amended Complaint, ¶ 30.)

On April

21, 2026, Sorensen Architects filed this demurrer.

On April

27, 2026, Gerson filed a Third Amended Complaint.

On May 6,

2026, the Court deemed the demurrer a demurrer to the Third Amended Complaint

because the challenged allegations did not change.

On July

29, 2026, Gerson filed opposition to the demurrer.

Arguments

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Architects argues that all three of Gerson's claims against it sound in professional negligence, which requires Plaintiffs to file a valid certificate of merit before service of the initial complaint. Sorensen Architects contend that the certificate of merit is untimely and lacks sufficient information for the Court to assess whether Gerson's former counsel complied with the statute by consulting with a licensed architect and a licensed engineer. (Demurrer, p. 9.) Sorensen Architects argues that the certificate of merit was untimely because the complaint had already been served on Guideline Builders and Arie Aflalo. (Id. at p. 15.) Sorensen Architects argues that there are insufficient facts plead about who and what types of experts were consulted, if those experts have an interest in the case, and what opinions the experts gave. (Id. at p. 16.)

In

opposition, Gerson argues that service on Guideline was not complete until after the certificate was filed because Guideline was served by substituted service, which is not deemed complete until ten days after mailing. (Opposition, p. 3.) Gerson then argues that the purpose of the statute was fulfilled because the certificate was filed before the summons and complaint were served on the Sorensen Architects. (Id. at p. 4.) Gerson argues that the certificate is not required to contain the level of specificity that Sorensen Architects contend, and that to find that it is insufficiently specific would be to read additional information into the statute. (id. at p. 6.) Gerson argues that the complaint is not uncertain and requests leave to amend if the Court sustains the demurrer. (Id. at p. 9.)

In reply,

Sorensen Architects argue that there is no proof of service that Gerson ever served the certificate of merit on Guideline Builders and Arie Aflalo. (Reply, p. 3.) Sorensen Architects argue that the case against them must be dismissed under *Curtis Engineering Corp. v. Superior Court* (2017) 16 Cal.App.5th 542, 550, as modified on denial of reh'g (Nov. 16, 2017), which requires strict compliance with the statute. (Id. at p. 4.) Sorensen Architects also argue that

the certificate was also not filed within the statute of limitations for professional negligence in California because the Third Amended Complaint admits that Plaintiff knew she was harmed when the demolition of her home began on August 8, 2022. (Id. at p. 5.) Sorensen Architects also argue that the certificate of merit does not sufficiently advise the Court which experts were consulted before filing. (Id. at p. 6.)

Governing

Law- Demurrer

In a

demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before

filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

An amended

cross-complaint moots any pending motions addressed to the original complaint, which ceases to perform any function as a pleading. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477, citing Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 184

Cal.App.4th 1124, 1130-1131.) The Court may only rule in favor of a defendant if they make a new motion or properly renew the earlier motion. (Ibid.)

Discussion

Procedural
Issues

a.

Meet
and Confer

The

parties discussed the issue raised by this demurrer extensively over several months leading up to this hearing. (See Krebs Decl., ¶¶ 12-15.) The meet and confer requirement is satisfied.

b. Mootness

The

demurrer is not moot because the moving party appeared ex parte and obtained a court order renewing the motion against the Third Amended Complaint.

Certificate
of Merit

A

plaintiff who sues an architect for professional negligence must file a certificate of merit:

(a) In

every action, including a cross-complaint for damages or indemnity, arising out of the professional negligence of a person holding a valid architect's certificate issued pursuant to Chapter 3 (commencing with Section 5500) of Division 3 of the Business and Professions Code, or of a person holding a valid registration as a professional engineer issued pursuant to Chapter 7 (commencing with Section 6700) of Division 3 of the Business and Professions Code, or a person holding a valid land surveyor's license issued pursuant to Chapter 15 (commencing with Section 8700) of Division 3 of the Business and Professions Code on or before the date of service of the complaint or cross-complaint on any defendant or cross-defendant, the attorney for the

plaintiff or cross-complainant shall file and serve the certificate specified by subdivision (b).

(b) A

certificate shall be executed by the attorney for the plaintiff or cross-complainant declaring one of the following:

(1) That

the attorney has reviewed the facts of the case, that the attorney has consulted with and received an opinion from at least one architect, professional engineer, or land surveyor who is licensed to practice and practices in this state or any other state, or who teaches at an accredited college or university and is licensed to practice in this state or any other state, in the same discipline as the defendant or cross-defendant and who the attorney reasonably believes is knowledgeable in the relevant issues involved in the particular action, and that the attorney has concluded on the basis of this review and consultation that there is reasonable and meritorious cause for the filing of this action. The person consulted may not be a party to the litigation. The person consulted shall render his or her opinion that the named defendant or cross-defendant was negligent or was not negligent in the performance of the applicable professional services.

(2) That

the attorney was unable to obtain the consultation required by paragraph (1) because a statute of limitations would impair the action and that the certificate required by paragraph (1) could not be obtained before the impairment of the action. If a certificate is executed pursuant to this paragraph, the certificate required by paragraph (1) shall be filed within 60 days after filing the complaint.

(3) That

the attorney was unable to obtain the consultation required by paragraph (1) because the attorney had made three separate good faith attempts with three separate architects, professional engineers, or land surveyors to obtain this consultation and none of those contacted would agree to the consultation.

(c) Where

a certificate is required pursuant to this section, only one certificate shall be filed, notwithstanding that multiple defendants have been named in the complaint or may be named at a later time.

(Code

Civ. Proc. § 411.35)

a.

Timeliness

The

statute requires that the certificate of merit be filed and served “on or before the date of service of the complaint or cross-complaint on any defendant or cross-defendant.” Gerson served Arie Aflalo and Guideline Builders by substituted service on August 8, 2025. On August 14, 2025, Gerson mailed a copy of the summons and complaint to Guideline Builders and Arie Aflalo. Substituted service is complete on the tenth day after mailing. (Code Civ. Proc. § 415.20.) Here, service was complete on August 24, 2025. August 24, 2025, was a Sunday, so for the purposes of comparing dates, service on Guideline Builders and Arie Aflalo was complete on Monday, August 25, 2025.

The

certificate of merit was filed with the Court on August 15, 2025, without proof of service. On August 25, 2025, Gerson's former attorney filed a declaration stating that he provided his attorney service with the certificate of merit to serve on Sorensen Architects, Christopher R. Sorensen, Parker Resnick Structural Engineering, and Steven Cox, with the expectation that service be completed the week of August 25, 2025. No proof of service was ever filed, nor was the certificate of merit ever served on the other defendants in this case, Guideline Builders and Arie Aflalo.

In *Curtis*

Engineering Corp. v. Superior Court, the Court of Appeal held the relation back doctrine does not apply to certificates of merit because the statute requires that the certificate be served “on or before the date of service.” (*Curtis Engineering Corp. v. Superior Court* (2017) 16 Cal.App.5th 542, 548-549.) The Court interpreted Code Civ. Proc. § 411.35 strictly, finding that a plaintiff had to meet all the statutory requirements for filing a certificate of merit within the statutory timeframes. (Id. at 546.)

Here,

though the certificate of merit was filed before service of the complaint on

Guideline Builders was completed, Gerson has not presented any evidence that it was ever served. The statute requires that the certificate be filed and served on or before the date the first defendant is served with the summons and complaint. (Code Civ. Proc. § 411.35) Gerson's former attorney's declaration establishes that the certificate was not served on or before August 25, 2025, the date service on Guideline Builders was complete. The declaration was filed on August 25, 2025 at 7:49 pm, after close of business, and did not report that service was complete. Had service been completed on August 25, 2025, the declaration would have said so.

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Architects argues that this defect is fatal to Gerson's complaint and that the demurrer should be sustained without leave to amend because the statute of limitations has run on her professional negligence claims.

In Curtis

Engineering, the Court sustained the demurrer without leave to amend because the claims were also barred by the applicable statute of limitations and because it found the plaintiff's offer of proof inadequate. (Curtis Engineering Corp. v. Superior Court, supra (2017) 16 Cal.App.5th at 549.)

This case

is more like Price v. Dames & Moore. In that case, the Court found that leave to amend was required because the claims in the complaint were not facially barred by the statute of limitations. (Price v. Dames & Moore (2001) 92 Cal.App.4th 355, 361-362.) In that case, the Court found that leave to amend was required because the complaint did not allege both discovery and appreciable harm, as required to start the statute of limitations on a professional negligence claim. (Ibid., quoting International Engine Parts, Inc. v. Feddersen (1995) 9 Cal.4th 606, 614.)

Here too,

Plaintiff alleges when Sorensen Architects worked on the house, but do not allege specifically when they discovered Sorensen Architects' work was defective. (See TAC, ¶¶ 24, 31.)

Conclusion

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Architects' demurrer is SUSTAINED with leave to amend.